



CHAPTER cxciv.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Tramways Act 1870 relating to Colchester Corporation Tramways King's Norton and Northfield Urban District Council Tramway Luton Corporation Tramways Portobello and Musselburgh Tramways (Amendment) and Southampton Corporation Tramways. A.D. 1905.
[11th August 1905.]

WHEREAS under the authority of the Tramways Act 1870 the Board of Trade have made the several Provisional Orders set out in the schedule to this Act annexed : 33 & 34 Vict.
c. 78.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the several Provisional Orders made by the Board of Trade under the authority of the said Act and set out in the schedule to this Act annexed be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Tramways Orders Confirmation (No. 2) Act 1905. Short title.

2. The several Orders as amended and set out in the schedule to this Act annexed shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full force and validity and the dates of the same respectively shall be the date of the passing of this Act. Confirmation
of Orders in
schedule.

A.D. 1905.
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SCHEDULE.

LIST OF ORDERS.
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COLCHESTER CORPORATION TRAMWAYS. — Order authorising the Mayor Aldermen and Burgesses of the Borough of Colchester to construct an additional tramway in the said Borough and for other purposes.

KING'S NORTON AND NORTHFIELD URBAN DISTRICT COUNCIL TRAMWAY.— Order authorising the Urban District Council of King's Norton and Northfield to construct an additional tramway in their District and for other purposes.

LUTON CORPORATION TRAMWAYS.—Order authorising the Mayor Aldermen and Burgesses of the Borough of Luton to construct tramways in their Borough.

PORTOBELLO AND MUSSELBURGH TRAMWAYS (AMENDMENT).—Order granted to the National Electric Construction Company Limited amending the Portobello and Musselburgh Tramways Orders 1900 and 1903.

SOUTHAMPTON CORPORATION TRAMWAYS.—Order authorising the Mayor Aldermen and Burgesses of the Borough of Southampton to construct additional tramways in the said Borough.

COLCHESTER CORPORATION.

A.D. 1905.

Order authorising the Mayor Aldermen and Burgesses of the Borough of Colchester to construct an additional Tramway in the said Borough and for other purposes.

Colchester Corporation.

1. This Order may be cited as the Colchester Corporation Tramways Order 1905. Short title.

2. The Colchester Corporation Tramways Order 1901 (hereinafter called "the Order of 1901") as amended by this Order and this Order shall be construed together as one Order and may be cited jointly as "the Colchester Corporation Tramways Orders 1901 and 1905." Order of 1901 and this Order to be construed together

3. The mayor aldermen and burgesses of the borough of Colchester in the county of Essex acting by the council shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters." Promoters.

4. The Promoters may construct and maintain subject to the provisions of this Order and in accordance with the plans and sections deposited at the office of the Board of Trade for the purposes of this Order (which plans and sections are in this Order referred to as "the deposited plans" and "the deposited sections") the tramway hereinafter described with all proper rails points junctions plates works and conveniences connected therewith or for the purposes thereof. Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the Act of 1882 apply except in accordance with and subject to the provisions of that section. Construction of tramway.

The tramway by this Order authorised will be wholly situate within the borough and is as follows (that is to say) :—

A tramway 4 furlongs 6·97 chains or thereabouts in length (whereof 2 furlongs 5·00 chains will be single and 2 furlongs 1·97 chains will be double) commencing in Magdalen Street by a junction with the existing tramway in such street at a point 40 yards or thereabouts eastward of the north-eastern corner of Portland Road passing along Military Road and part of Old Heath Road and terminating in Old Heath Road at a point 73 yards or thereabouts south-eastward of the south-east corner of Wimpole Road :

The said tramway will be constructed as a single line except between the points hereinafter specified where it will be laid as a double line :—

(A) In Magdalen Street from the point of its junction with the existing tramway in such street to a point 32 yards or thereabouts south-eastward of such junction such last-mentioned point being at the commencement of Military Road :

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Colchester Corporation.

(B) In Military Road—

(1) Between points distant respectively 32 yards and 67 yards or thereabouts south-eastward of such junction in Magdalen Street aforesaid ;

(2) Between points distant respectively 20 yards and 117 yards or thereabouts south-eastward of the south-eastern corner of Winnock Road ;

(3) Between points distant respectively 110 yards and 210 yards or thereabouts south-eastward of the north-eastern corner of Mill Street ;

(4) Between points distant respectively 110 yards and 20 yards or thereabouts westward of the south-western corner of New Town Road ;

(5) Between points distant respectively 60 yards and 150 yards or thereabouts south-eastward of the south-western corner of New Town Road aforesaid ;

(6) Between a point distant 60 yards or thereabouts north-westward of the south-eastern corner of Wimpole Road and a point opposite such south-eastern corner of Wimpole Road being the termination of Military Road :

(c) In Old Heath Road from a point opposite the aforesaid south-eastern corner of Wimpole Road to a point 30 yards or thereabouts south-eastward of the aforesaid corner of Wimpole Road.

For protection
of War De-
partment.

5. Unless the Board of Trade in the interests of safety otherwise require the Promoters shall not permit any engine or carriage to stop or stand upon the tramway opposite or near to the entrance to any lands or buildings vested in or under the control of His Majesty's Principal Secretary of State for the War Department in such manner as to interfere with access to or from such lands or buildings except with the consent of the said Secretary of State first obtained.

Application of
provisions of
Order of 1901.

6. The tramway by this Order authorised shall form part of the tramway undertaking of the Promoters and the provisions of the Order of 1901 so far as the same are applicable in that behalf and are not inconsistent with the provisions of this Order shall extend and apply mutatis mutandis to and in relation to the tramway by this Order authorised.

Application of
section 30 of
Tramways Act
1870 to over-
head wires.

7. Section 30 (except subsections (1) and (5) thereof) of the Tramways Act 1870 in its application to the tramways undertaking of the Promoters shall have effect as if wires or apparatus laid in a road included wires or apparatus erected or carried over a road or footpath.

Notice of
alteration of
tramways &c.

8. The provisions of section 12 (Alteration of tramways) of the Order of 1901 shall extend to the substitution of double or single lines for interlacing lines and the notices of the Promoters' intention referred to in the said section

[5 EDW. 7.] *Tramways Orders Confirmation (No. 2)* [Ch. cxciv.]
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and in section 14 (Additional crossover roads &c. may be made where necessary) of the said Order shall be sent to the owners and occupiers therein mentioned one month before the Promoters commence the alterations or works in those sections provided for.

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Colchester Corporation.

9.—(A) Notwithstanding anything in this Order or in the Order of 1901 contained if any of the works by this Order or by the Order of 1901 authorised involves or is likely to involve any alteration of any telegraphic line belonging to or used by His Majesty's Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

For protection
of Postmaster-
General.

(B) In the event of any of the Promoters' tramways being worked by electricity the following provisions shall have effect :—

- (1) The Promoters shall construct their electric lines and other works of all descriptions and shall work their tramway undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by the Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the tramway undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Promoters as to compliance with this subsection shall be referred to arbitration :
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Promoters of their electric lines and works or by the working of their tramway undertaking or any part thereof the Promoters shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :
- (3) Before any electric line is laid down or any act or work for working the Promoters' tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Promoters or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Promoters and their agents shall conform with such reasonable requirements (either general or special) as may be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster-General and the Promoters as to any requirements so made shall be referred to arbitration :

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Act, 1905.

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*Colchester
Corporation.*

- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works by this Order or by the Order of 1901 authorised is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of any such works or to the working of the tramway undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated for tramway purposes at any works of the Promoters enter thereon for the purpose of inspecting the plant and the working of the same and the Promoters shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Promoters pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Promoters or their agents the Promoters shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Promoters or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be referred to arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32

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both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Promoters or their agents were a company within the meaning of that Act:

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Colchester Corporation.

(11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Promoters by indictment action or otherwise in relation to any of the matters aforesaid:

(12) In this section the expression "the Promoters" includes any person owning working or running carriages over any of the tramways of the Promoters:

(13) Section 25 of the Order of 1901 is hereby repealed.

10.—(1) Notices and other documents required or authorised to be served under this Order or under the Order of 1901 may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any local authority or company any such notice or other document shall be delivered or sent by post in a prepaid letter addressed to the clerk to the local authority at his office or to the secretary of the company at their registered or principal office.

Delivery of notices.

(2) Subsection (2) of section 47 of the Order of 1901 is hereby repealed.

KING'S NORTON AND NORTHFIELD URBAN DISTRICT
COUNCIL.

Order authorising the Urban District Council of King's Norton and Northfield to construct an additional Tramway in their District and for other purposes.

King's Norton and Northfield Urban District Council.

1. This Order may be cited as the King's Norton and Northfield Urban District Council Tramway Order 1905.

Short title.

2. The provisions of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order.

Incorporation of Acts.

3. The several words terms and expressions to which by the Tramways Act 1870 meanings are assigned have in this Order the same respective meanings. Provided that in this Order—

Interpretation.

The expression "the district" means the urban district of King's Norton and Northfield in the county of Worcester;

The expression "the council" means the council of the district;

The expression "the tramway" means the tramway and works by this Order authorised;

The expression "the Act of 1901" means the King's Norton and Northfield Urban District Tramways Act 1901;

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*King's Norton
and Northfield
Urban District
Council.*

Promoters.

Construction
of tramway.

For protection
of Worcester-
shire County
Council.

The expression "the tramway undertaking" has the meaning assigned thereto by the Act of 1901 ;

The expression "mechanical power" includes steam electric and every other motive power not being animal power.

4. The council shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters."

5. The Promoters may construct and maintain subject to the provisions of this Order and in accordance with the plans and sections deposited for the purposes of this Order at the office of the Board of Trade the tramway hereinafter described with all proper rails plates sleepers channels junctions turntables turnouts crossings passing places triangles posts poles brackets wires waiting-rooms stables carriage-houses engine-houses stations sheds buildings works and conveniences connected therewith or for the purposes thereof :

Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the Act of 1882 apply except in accordance with and subject to the provisions of that section.

The tramway authorised by this Order will be wholly situate within the district and is as follows (that is to say) :—

A double line 6 furlongs 8·10 chains or thereabouts in length commencing by a junction with the existing tramway of the City of Birmingham Tramways Company Limited at a point 4·00 chains or thereabouts north-eastward of the intersection of the centre lines of Vicarage Road and Alcester Road passing along Alcester Road in a southerly direction and terminating at a point 3·50 chains or thereabouts southward of the intersection of the centre lines of Taylor Road and Alcester Road.

6. For the protection and benefit of the Worcestershire County Council (in this section referred to as "the county council") so long as they are the road authority of the road whereon the tramway is laid the following provisions shall unless otherwise agreed in writing between the Promoters and the county council apply and have effect (that is to say) :—

(1) The provisions of section 7 and section 38 subsection (10) (as to Tramway No. 1 therein referred to) and subsections (13) (14) (15) (16) (17) (18) (19) (20) and (21) of the Act of 1901 are hereby incorporated with this Order and applied to the tramway except where they are inconsistent with or expressly varied by this Order Provided always that the county council shall signify their approval or disapproval of the plan showing the proposed mode of constructing laying down maintaining and renewing the tramway and of the statement of the materials intended to be used therein to be laid before the county council under or by

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virtue of section 7 of the Act of 1901 within one calendar month from the date such plan and statement shall be so laid before them :

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and Northfield
Urban District
Council.

- (2) The cost of any raising lowering or other alteration of the road whereon the tramway is constructed rendered necessary by the construction of the tramway and the cost of providing or altering all drains culverts gullies kerbs and channels rendered necessary thereby shall be borne by the Promoters and such raising lowering or other alteration of the road and the construction of such drains culverts kerbs and channels shall be carried out by the Promoters in such manner as may be agreed upon with the county council :
- (3) If any company or person other than a local authority to whom the Promoters may lease the tramway shall in connection with the tramway without the consent of the county council deposit snow or other matter or use salt or other unsuitable material for the thawing of snow contrary to the provisions of section 38 subsection (18) of the Act of 1901 they shall for every such offence (without prejudice to the enforcement of any other remedy against them by the county council) be liable to a penalty of twenty pounds as liquidated damages for each day on which snow or other matter shall be or remain deposited as aforesaid and for each day on which salt or other unsuitable material shall be used as aforesaid Such penalties shall be payable to the county council as road authority and be recoverable in manner provided by the Summary Jurisdiction Acts.

7. The Promoters shall be entitled to execute the works necessary to form a junction between the tramway authorised by this Order and the existing tramway of the City of Birmingham Tramways Company Limited (hereinafter called "the tramways company") subject only to the provisions and restrictions of this section :—

For protection
of City of Bir-
mingham Tram-
ways Company
Limited.

- (1) All such works as may be necessary to form the said junction shall be constructed and maintained by the Promoters in manner and according to plans sections and specifications to be first submitted to and reasonably approved by the engineer of the tramways company :
- (2) All such works relating to the said junction shall be carried on uninterruptedly when commenced and shall be completed with all reasonable dispatch and shall be constructed and maintained by the Promoters so that the traffic on the existing tramways of the tramways company shall not except to such extent as may be agreed upon between the Promoters and the tramways company or failing agreement be determined by arbitration be in any way obstructed impeded or interfered with and such

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maintenance shall be effected under the superintendence and to the reasonable satisfaction of the engineer of the tramways company :

(3) The Promoters shall pay to the tramways company full compensation for any injury or damage sustained by them in respect of any works constructed by the council under this section :

(4) Any difference arising between the Promoters and the tramways company under the provisions of this section shall be referred to the arbitration of a person to be nominated by the Board of Trade and the Arbitration Act 1889 shall apply as if the arbitration were pursuant to a submission :

(5) Nothing in this Order shall authorise the Promoters to run over the several tramways of the tramways company or to interfere with such tramways or any of them except so far as they may be entitled to so interfere under the terms of this section.

Tramway to
form part of
tramway
undertaking.

8. Subject to the provisions of this Order the tramway shall for all purposes form part of the tramway undertaking and the Promoters and their lessees and licencees may in respect of the tramway exercise and enjoy all and the like powers rights privileges and authorities which they now may or are empowered to exercise and enjoy and shall be subject and liable to the like penalties conditions restrictions and stipulations as they are subject and liable to with respect to the tramway undertaking or any part thereof and may demand take and recover in respect of the tramway or any part thereof the like tolls rates and charges for the use thereof and for the conveyance thereon of traffic of all kinds and for the use of carriages placed and run thereon by them as they are authorised to demand and take in respect of the tramways authorised by the Act of 1901 Provided that nothing in this Order shall be deemed to extend the provisions of section 28 of the Act of 1901 to the tramway by this Order authorised or to authorise the taking of any lands except by agreement.

Application of
Section 30 of
Tramways Act
1870 to over-
head wires.

9. Section 30 (except subsections (1) and (5) thereof) of the Tramways Act 1870 in its application to the tramways undertaking of the Promoters shall have effect as if wires or apparatus laid in a road included wires or apparatus erected or carried over a road or footpath.

Alteration of
tramways.

10. So far as regards any tramways of the council the provisions of section 14 (Alteration of tramways) of the Act of 1901 shall extend to the substitution of double or single lines for interlacing lines and the notices of the Promoters' intention referred to in the said section and in section 13 (Additional crossings &c.) of the said Act shall be sent to the owners and occupiers therein mentioned one month before the Promoters commence the alterations or works in those sections provided for.

Attachment of
brackets to
buildings.

11. For the purpose of working the tramway by mechanical power the Promoters and their lessees may subject to the provisions of this Order

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(and as to the lessees subject to the terms of their lease) with the consent of the owners and occupiers of any houses or buildings affix to such houses or buildings and maintain posts brackets electric conductors wires and apparatus.

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*King's Norton
and Northfield
Urban District
Council.*

12.—(A) Notwithstanding anything in this Order or in the Act of 1901 contained if any of the works by this Order or by the said Act authorised involves or is likely to involve any alteration of any telegraphic line belonging to or used by His Majesty's Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

For protection
of Postmaster-
General.

(B) In the event of any of the tramways of the Promoters being worked by electricity the following provisions shall have effect:—

- (1) The Promoters shall construct their electric lines and other works of all descriptions and shall work the tramway undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by the Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the tramway undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Promoters as to compliance with this subsection shall be referred to arbitration :
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Promoters of their electric lines and works or by the working of the tramway undertaking or any part thereof the Promoters shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :
- (3) Before any electric line is laid down or any act or work for working the tramways of the Promoters by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Promoters or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Promoters and their agents shall conform with such reasonable requirements (either general or special) as may be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster-General and the Promoters as to any requirements so made shall be referred to arbitration :

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and Northfield
Urban District
Council.*

- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works by this Order or by the Act of 1901 authorised is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of any such works or to the working of the tramway undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated for tramway purposes at any works of the Promoters enter thereon for the purpose of inspecting the plant and the working of the same and the Promoters shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Promoters pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Promoters or their agents the Promoters shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Promoters or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by any act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be referred to arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both

inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Promoters or their agents were a company within the meaning of that Act :

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and Northfield
Urban District
Council.*

(11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Promoters by indictment action or otherwise in relation to any of the matters aforesaid :

(12) In this section the expression " the Promoters " includes any person owning working or running carriages over any of the tramways of the Promoters :

(13) Section 31 of the Act of 1901 is hereby repealed.

13. Nothing in this Order contained shall exempt the Promoters or any person using the tramway or the tramway from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of tolls or charges authorised by this Order.

Saving for
general Acts.

LUTON CORPORATION.

*Order authorising the Mayor Aldermen and Burgesses of the
Borough of Luton to construct Tramways in their Borough.*

*Luton
Corporation.*

Preliminary.

1. This Order may be cited as the Luton Corporation Tramways Order 1905. Short title.

2. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking) and of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order.

Incorporation
of Acts.

3. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order meanings are assigned have in this Order the same respective meanings Provided that in this Order—

Interpretation.

The expression " the borough " means the borough of Luton in the county of Bedford ;

The expression " the corporation " means the mayor aldermen and burgesses of the borough acting by the council ;

The expression " the tramways " means the tramways and works by this Order authorised or (as the case may be) any part thereof ;

The expression " the undertaking " means the undertaking by this Order authorised ;

The expression " mechanical power " includes steam electrical and every other motive power not being animal power and the word " engine " includes motor.

Luton
Corporation.
Promoters.

4. The corporation shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters."

Lands.

5. The Promoters may—

(A) Subject to the sanction of the Local Government Board and under such conditions as they may prescribe from time to time appropriate and use for any of the purposes of this Order but subject to the provisions (if any) under which such lands were respectively acquired any lands not dedicated to public use from time to time vested in them being part of their corporate estates :

(B) By agreement from time to time purchase and acquire for the purposes of the undertaking such lands as they may require and may from time to time sell let or dispose of any such lands which may not be necessary for such purposes Provided that all sums received by the Promoters from the sale of such lands or from fines or premiums on leases of the same shall be applied solely in repayment of outstanding loans and that such moneys shall not be applied to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board :

Provided that they shall not at any time hold for such purposes more than five acres of land Provided also that nothing in this Order shall exonerate the Promoters from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon lands appropriated or taken under the powers of this section.

Construction of Tramways.

Construction
of tramways.

6. The Promoters may subject to the provisions of this Order—

(A) Construct and maintain in accordance with the plans and sections deposited at the office of the Board of Trade for the purposes of this Order as the same have been amended previous to the passing of the Act confirming this Order (which plans and sections so amended as aforesaid are in this Order referred to respectively as "the deposited plans" and "the deposited sections") the tramways hereinafter described with all proper rails plates sleepers junctions turntables turnouts works and conveniences connected therewith or for the purposes thereof :

(B) Erect or construct on any lands taken or appropriated under the powers of this Order any offices stables sheds workshops stores waiting rooms or other buildings yards works and conveniences for the purposes of the undertaking :

[5 EDW. 7.] *Tramways Orders Confirmation (No. 2)* [Ch. cxciv.]
Act, 1905.

Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the Act of 1882 apply except in accordance with and subject to the provisions of that section.

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Corporation.*

The tramways authorised by this Order will be wholly situate within the borough and are as follows (that is to say):—

Tramway No. 1 (7 furlongs 2·25 chains in length whereof 6 furlongs 3·25 chains will be single line and 9·00 chains will be double line) situate wholly in Dunstable Road commencing at the borough boundary at a point opposite to the eastern boundary fence of the cottages and premises known as "The Firs" and terminating at a point opposite to the western frontage line of Beech Road :

Tramway No. 1 will be laid as a single line except at the following places where it will be double:—

(A) Between points respectively 1 chain and 4 chains east of the commencement of the tramway ;

(B) From a point opposite the eastern boundary fence of the private road leading to Maiden Common Farm for a distance of 3 chains measured in an easterly direction ;

(C) Between points respectively 0·5 chain and 3·5 chains west of the westerly corner of the footpath leading from Dunstable Road past the Children's Home to the Gasworks in Dunstable Road.

Tramway No. 2 (2 miles 1 furlong 4·90 chains in length whereof 1 mile 6 furlongs 3·60 chains are single line and 3 furlongs 1·30 chains are double line) commencing in Legrave Road at the borough boundary thence proceeding in an easterly direction along Legrave Road Dunstable Road Upper George Street George Street Park Square and Park Street to and terminating in Park Road at the intersection of the centre lines of Park Road and Trapps Lane :

Tramway No. 2 will be laid as a single line except at the following places where it will be double:—

(A) In Legrave Road between points respectively 1 chain and 4 chains east of the commencement of the tramway ;

(B) In Legrave Road between points respectively 1·5 chains and 4·5 chains north-west of the northern side of the bridge carrying the Midland Railway over Legrave Road ;

(C) In Dunstable Road from the intersection of the centre lines of Legrave Road and Dunstable Road for a distance of 3 chains measured in an easterly direction ;

(D) In Dunstable Road between points respectively 0·85 chain west and 1·45 chains east of the intersection of the centre lines of Dunstable Road and Francis Street ;

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(E) In Dunstable Road from the intersection of the centre lines of Cardigan Street and Dunstable Road for a distance of 3 chains measured in a north-easterly direction ;

(F) In George Street from a point 0·80 chain north-west of the north-western corner of Wellington Street to a point 0·30 chain west of the intersection of the centre lines of George Street and Bute Street ;

(G) In George Street from a point 0·15 chain east of the intersection of the centre lines of George Street and Adelaide Terrace to a point 0·25 chain north-east of the intersection of the centre lines of George Street and Cheapside ;

(H) In Park Square between points respectively 2·15 chains and 5·15 chains east of the intersection of the centre lines of Park Square and Park Lane ;

(I) In Park Street from a point 0·15 chain north-west of the intersection of the centre lines of Cumberland Street and Park Street for a distance of 2·85 chains measured in a south-easterly direction ;

(K) In Park Street from a point 1·65 chains south-east of the intersection of the centre lines of Park Street and East Avenue to a point 0·70 chain south-east of the intersection of the centre lines of Bailey Street and Park Street ;

(L) In Park Road between points respectively 4 chains and 1 chain north-west of the termination of the tramway.

Tramway No. 3 (1 mile 1 furlong 7·87 chains in length whereof 7 furlongs 7·22 chains are single line and 2 furlongs 0·65 chain are double line) commencing in George Street by a junction with Tramway No. 2 at a point 1 chain south of the south-western corner of the warehouse No. 68 George Street thence proceeding in a northerly direction into and along Manchester Street and New Bedford Road and terminating in the last mentioned road at the borough boundary at a point 0·5 chain south of the intersection of the centre lines of New Bedford Road and Stockingstone Lane :

Tramway No. 3 will be laid as a single line except at the following places where it will be double :—

(A) In George Street from the commencement of the tramway for a distance of 3 chains measured in a northerly direction ;

(B) In Manchester Street and New Bedford Road from a point in Manchester Street 1·15 chains north of the intersection of the centre lines of Gordon Street and Manchester Street to the intersection of the centre lines of Inkerman Street Collingdon Street and New Bedford Road ;

(C) In New Bedford Road from a point 1 chain north of the intersection of the centre lines of the entrance to the premises

known as "The Mount" and New Bedford Road to a point 0·5 chain south of the intersection of the centre lines of the entrance to the premises known as "Shirley" and New Bedford Road. Provided that single line only shall be laid unless and until the roadway at this place has been so widened that 9 feet 6 inches shall intervene between the nearest rail and the kerb on both sides of the road;

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(D) In New Bedford Road between points respectively 0·75 chain and 3·75 chains north of the intersection of the centre lines of New Bedford Road and Studley Road;

(E) In New Bedford Road from a point 2·5 chains north of the southerly boundary fence of the Gelatine Works to a point 2·5 chains south of the northerly fence of those works;

(F) In New Bedford Road from the intersection of the centre lines of New Bedford Road and the bridge over the River Lea opposite the cottage known as "Pump House" to a point 1 chain south of the termination of the tramway.

Tramway No. 4 (1 mile 1 furlong in length whereof 7 furlongs are single line and 2 furlongs are double line) commencing in New Bedford Road by a junction with Tramway No. 3 at a point 0·5 chain south-east of the intersection of Mill Street and New Bedford Road thence proceeding into and along Mill Street Old Bedford Road Midland Road and Hightown Road to and terminating in Hitchin Road at a point opposite the north-eastern corner of the Wesleyan Chapel at Round Green :

Tramway No. 4 will be laid as a single line except at the following places where it will be double :—

(A) In Midland Road from a point opposite the westerly boundary wall of the premises known as "Hildene" to a point opposite the south-westerly corner of the "Railway Inn" Hightown Road;

(B) In Hightown Road from the intersection of the centre lines of Hightown Road and Cross Street to the intersection of the centre lines of Hightown Road and Havelock Road;

(C) In Hightown Road between points respectively 2·20 chains south-west and 0·80 chain north-east of the intersection of the centre lines of Hightown Road and Park Way;

(D) In Hitchin Road from a point opposite the south-easterly corner of the premises known as No. 2 Round Green to a point opposite the north-westerly corner of the premises known as No. 18 Round Green :

Provided that Tramway No. 4 shall not be opened for traffic unless and until the roadway between furlong points six and seven has been widened to at least 23 feet.

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Tramway No. 5 (1 mile 4·70 chains in length whereof 7 furlongs 0·70 chain are single line and 1 furlong 4·00 chains are double line) commencing in George Street by a junction with Tramway No. 2 at a point opposite the easterly corner of Cheapside and thence proceeding in a southerly direction into and along Chapel Street Windsor Street Hibbert Street and Ashton Road to and terminating in London Road at the borough boundary at the intersection of the centre lines of London Road and Trapps Lane :

Tramway No. 5 will be laid as a single line except at the following places where it will be double :—

(A) In Chapel Street between points respectively 0·40 chain north and 1·10 chains south of the intersection of the centre lines of Stuart Street and Chapel Street ;

(B) In Chapel Street from a point 0·5 chain north of the intersection of the centre lines of Dumfries Street and Chapel Street to a point 0·5 chain south of the intersection of the centre lines of Elizabeth Street and Chapel Street ;

(C) In Windsor Street from a point 0·25 chain east of the north-easterly corner of South Road to a point 1 chain west of the intersection of the centre lines of Castle Street and Windsor Street ;

(D) In London Road from the intersection of the centre lines of London Road and Castle Street for a distance of 3 chains measured in a southerly direction Provided that single line only shall be laid unless and until the roadway at this place has been so widened that 9 feet 6 inches shall intervene between the nearest rail and the kerb on both sides of the road ;

(E) In London Road between points respectively 0·25 chain and 3·25 chains south of the northern boundary wall of the premises known as " Kinaere Hill."

Tramway No. 6 (single line 1·50 chains in length) commencing in Upper George Street by a junction with Tramway No. 2 at a point opposite the south-westerly corner of the Town Hall thence proceeding in an easterly and northerly direction to and terminating in Manchester Street by a junction with Tramway No. 3 at a point opposite the north-easterly corner of the Town Hall.

Tramway No. 7 (single line 1·1 chains in length) commencing in New Bedford Road by a junction with Tramway No. 3 at a point 0·10 chain north of the south-westerly boundary of the house No. 33 New Bedford Road thence proceeding in an easterly direction to and terminating in Mill Street by a junction with Tramway No. 4 at a point 0·20 chain west of the south-easterly corner of the house known as " Millbrook House."

For protection
of Bedfordshire
County Coun-
cil.

7. The following provisions for the protection of the Bedfordshire County Council (in this section called " the county council ") shall notwithstanding anything in this Order contained or shown upon the deposited plans

[5 EDW. 7.] *Tramways Orders Confirmation (No. 2)* [Ch. cxciv.]
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unless otherwise agreed in writing between the Promoters and the county council under their respective common seals have effect :—

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- (1) After the passing of this Order in ascertaining the annual payment to be made by the county council to the Promoters under section 11 (2) of the Local Government Act 1888 the Promoters shall not be entitled to any sum for any length of main road in which the tramways are situate greater than one calculated at the rate of two hundred and seven pounds per mile and the county council shall not in any case be required to contribute towards the cost of any widening or alteration in the level of any such road or any part thereof rendered necessary by reason of the construction or user of the tramways :
- (2) The Promoters shall so construct and maintain and use the tramways over any bridge or culvert and the approaches thereto belonging to the county council as not injuriously to affect the same and in the event of any injury or damage being caused to any such bridge or culvert or the approaches thereto by the construction maintenance or user of the tramways the Promoters shall make good at their own expense and restore the same to the reasonable satisfaction of the surveyor of the county council :
- (3) Before commencing any work which may affect or interfere with the structure of any such bridge or culvert or the approaches thereto or the roadway thereon the Promoters shall give twenty-one days' notice in writing to the county council and shall at the same time send sufficient plans sections and specifications showing the nature and the proposed method of construction of such works and such works shall be constructed and maintained in all respects in accordance with such plans sections and specifications and under the superintendence (if such superintendence shall be given) and to the reasonable satisfaction of the surveyor of the county council :
- (4) In the event of the tramways being worked by electricity on the overhead system no posts brackets wires or other apparatus shall except with the previous consent in writing of the county council be attached to or erected on any such bridge or culvert or the approaches thereto :
- (5) If by reason of the user of the tramways any such bridge or culvert or the approaches thereto though otherwise of sufficient strength and having been kept in proper repair shall have become or shall be in danger of becoming too weak for the traffic upon it and it is therefore reasonably necessary to strengthen alter repair or entirely rebuild the same then and in every such case the Promoters at their own expense shall so strengthen alter repair or entirely rebuild such bridge or culvert or the approaches thereto in all respects in accordance with the reasonable requirements of the county surveyor :

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Corporation.*

(6) Nothing in this Order contained shall affect the right of the county council to repair alter or rebuild any such bridge or culvert or the approaches thereto and if any bridge or culvert or the approaches thereto upon or along which the tramways are laid be repaired altered or rebuilt by the county council the county council may require the Promoters at their own expense to alter the tramways in such manner as the circumstances of the case may reasonably require and the county council shall not be responsible for any interference with the tramways or the traffic thereon caused by such repair alteration or rebuilding :

(7) Any matter in difference between the Promoters and the county council under or arising out of this section or with regard to anything done or required to be done under or in accordance therewith shall be referred to the arbitration of a single arbitrator to be agreed upon between the Promoters and the county council or failing agreement to be nominated by the Board of Trade.

For protection
of Great
Northern Rail-
way Company.

8. The following provisions for the protection of the Great Northern Railway Company (in this section called "the Great Northern Company") shall unless otherwise agreed between the Promoters and the Great Northern Company in writing under their respective common seals apply and have effect :—

(1) All works by this Order authorised where the same will be made under any railway of the Great Northern Company or will otherwise interfere with the same shall be constructed and maintained to the reasonable satisfaction of the engineer of the Great Northern Company according to plans sections and specifications to be previously approved by him or in case of difference between him and the engineer of the Promoters by an arbitrator to be appointed by the Board of Trade :

(2) If having regard to the proposed position of the works of the Promoters when considered in relation to the position of the works of the Great Northern Company at any point where the wires of the Great Northern Company pass over the tramways it is advisable that the electric telegraphic telephonic or signal wires or apparatus belonging to or maintainable by the Great Northern Company should be altered the Great Northern Company may execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be borne by the Promoters Any question as to whether it is advisable that any alteration should be made in accordance with this subsection or whether any work is reasonably necessary or as to the amount of the reasonable expense of executing any work shall unless otherwise agreed

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be referred to the Board of Trade for their determination or at the option of that Board to the arbitration of a person nominated by that Board.

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*Luton
Corporation.*

9. The following provisions for the protection of the Midland Railway Company (in this section called "the Midland Company") shall unless otherwise agreed between the Promoters and the Midland Company in writing under their respective common seals apply and have effect:—

For protection
of Midland
Railway
Company.

- (1) So much of Tramways Nos. 2 3 and 4 as will pass under the respective bridges carrying the Midland Railway over Leagrave Road New Bedford Road and Midland Road shall be so constructed and maintained as not injuriously to affect the structure of the said bridges or the piers and abutments thereof:
- (2) Plans sections and specifications of all works which may be necessary in constructing and maintaining the tramways or working the same by mechanical power under the said bridges and property of the Midland Company shall be submitted to the principal engineer of the Midland Company at least fourteen days before the same are to be commenced:
- (3) In the event of any injury being caused to the structure of the said bridges or the piers or abutments thereof by the construction maintenance repairing user or removal of any of the said tramways by this Order authorised or the works in connection therewith the Midland Company may at the expense of the Promoters restore the structure of such bridges or the part or parts thereof which may be injured to as good a state and condition as they were in before such injury was occasioned and the reasonable costs of so doing shall be repaid to them by the Promoters:
- (4) The alteration of the levels of the said roads by this Order authorised under and adjoining the said bridges carrying the railway of the Midland Company over the said roads shall be executed so as not to injure or affect the stability of the said bridges or the piers or abutments thereof and such alteration of levels shall be executed according to plans sections and specifications to be previously submitted to and reasonably approved by the principal engineer of the Midland Company Provided nevertheless that the level of the footpath shall not be altered:

The works of such alteration of levels shall be so carried out as to cause no injury to the said bridges or the piers or abutments thereof or interruption to the traffic on the said railway and if any injury be caused to the said bridges or interruption be caused to the traffic on the said railway in consequence of such alteration of levels the Promoters shall make full compensation to the Midland Company in respect thereof:

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*Luton
Corporation.*

- (5) If having regard to the proposed position of the works of the Promoters when considered in relation to the position of the works of the Midland Company at any point where the wires of the Midland Company pass over the tramways it is advisable that the electric telegraphic telephonic or signal wires or apparatus belonging to or maintainable by the Midland Company should be altered the Midland Company may execute any works reasonably necessary for such alteration and the reasonable expenses of executing such works shall be borne by the Promoters Any question as to whether it is advisable that any alteration should be made in accordance with this subsection or whether any work is reasonably necessary or as to the amount of the reasonable expense of executing any work shall be deemed a matter in difference between the Promoters and the Midland Company :
- (6) If and when the Midland Company shall require to reconstruct alter repair or paint any bridge under which any electric wire of the Promoters has been placed the Promoters shall if in order to ensure the safety of the workmen employed in such reconstruction alteration repairing or painting it should be necessary so to do cut off the electric current from the trolley wires under such bridge at such time as shall be reasonably required by the principal engineer of the Midland Company unless the Promoters shall have previously adopted some other means of protection to workmen which shall have been reasonably approved by the said engineer :
- (7) In the event of the tramways being worked by electricity on the overhead system no brackets wires or other apparatus shall except with the previous consent in writing of the principal engineer of the Midland Company be attached to any part of the said bridges :
- (8) Any matter in difference between the Promoters and the Midland Company under this section shall unless otherwise agreed be referred to the Board of Trade for their determination or at the option of that Board to the arbitration of a person nominated by that Board.

For protection
of Luton Gas
Company.

10. Notwithstanding anything shown on the deposited plans the Promoters shall construct Tramway No. 2 where it passes the Luton Gasworks as shown on the plan signed by George Sell on behalf of the Promoters and by William Richards Phillips on behalf of the Luton Gas Company a copy of which has been deposited with the Board of Trade.

Gauge and
width of car-
riages.

11.—(1) The tramways shall be constructed on a gauge of three feet six inches or such other gauge as may from time to time be determined by the Board of Trade on the application of the Promoters.

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(2) In the event of any of the tramways being constructed on a less gauge than four feet eight and a half inches so much of section 34 of the Tramways Act 1870 as limits the extent of the carriages used on any tramways beyond the outer edge of the wheels of such carriages shall not apply to carriages used on the tramways so constructed but no engine or carriage used on such tramways shall exceed six feet six inches in width or such other width as may from time to time be prescribed by the Board of Trade.

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Corporation.

12. In addition to the requirements of section 26 of the Tramways Act 1870 the Promoters shall lay before the Board of Trade a plan showing the proposed mode of constructing laying down or renewing the tramways and a statement of the materials intended to be used therein and the Promoters shall not commence the construction laying down or renewal of any of the tramways except for the purpose of necessary repairs until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement and in places where the Promoters are not the sole road authority under the superintendence and to the reasonable satisfaction of the surveyor of the road authority as provided by the said section.

Provisions as to construction of tramways.

13. The rails of the tramways shall be such as the Board of Trade may approve.

Rails of tramways.

14.—(1) The Promoters shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the substructure upon which the same rest and if the Promoters at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds and to a penalty not exceeding five pounds for every day on which such non-compliance continues.

Penalty for not maintaining rails and roads in good condition.

(2) In case it is represented in writing to the Board of Trade by the road authority of any district in which the tramways or any portion thereof are or is situate or by twenty ratepayers of the borough that the Promoters have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Promoters to such penalty or penalties in respect thereof as is or are by this section imposed.

15. If the Promoters or any other road authority hereafter alter the level of any road along or across which any part of the tramways is laid or authorised to be laid the Promoters may and shall from time to time alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

Tramways to be kept on level of surface of road.

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Corporation.
Crossovers to
be constructed
in certain
cases.

16. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Promoters shall if and where required by the Board of Trade construct a crossover or crossovers connecting the one tramway with the other and by the means of such crossover or crossovers the traffic shall when necessary be diverted from one tramway to the other.

Power to make
additional
crossovers &c.
and to alter
tramway lines.

17.—(1) The Promoters may subject to the provisions of this Order with the consent of the Board of Trade make maintain alter and remove all such crossovers passing-places sidings junctions and other works in addition to those particularly specified in and authorised by this Order as they find necessary or convenient for the efficient working of the tramways or for effecting junctions with other tramways or light railways or for providing access to any warehouses stables or carriage houses or works of the Promoters.

(2) Notwithstanding anything shown on the deposited plans the Promoters may with the consent of the Board of Trade lay down double lines in lieu of single or interlacing lines or single lines in lieu of double or interlacing lines or interlacing lines in lieu of double or single lines on any of the tramways and may with the like consent alter the position in the road of any of the tramways or any part thereof respectively Provided that the uppermost surface thereof shall be on a level with the surface of the road.

(3) Provided that if in the construction of any works under this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Promoters shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops and warehouses abutting on the place where such less space would intervene and such rail shall not be laid if the owners or occupiers of one-third of such houses shops or warehouses by writing under their hands addressed and delivered to the Promoters within three weeks after receiving the notice from the Promoters express their objection thereto.

(4) In places where the Promoters may not be the road authority the construction of any works under this section shall be subject to the approval of that authority.

Temporary
tramways may
be made when
necessary.

18. Where by reason of the execution of any work affecting the surface or soil of any road along which any of the tramways are laid it is in the opinion of the Promoters necessary or expedient temporarily to alter remove or discontinue the use of such tramway or any part thereof the Promoters may construct in the same or any adjacent road and maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of the tramway so removed or discontinued subject in places in which the Promoters may not be the road authority to the

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approval of the road authority and to such regulations as that authority may make. A.D. 1905.

19.—(1) Any paving metalling or material excavated by the Promoters in the construction of any works under the authority of this Order from any road under their jurisdiction or control shall absolutely vest in and belong to the Promoters and may be dealt with removed and disposed of by them in such manner as they may think fit. Luton Corporation.
Application of road materials excavated in construction of works.

(2) Any paving metalling or material excavated by the Promoters in the construction of the tramways from any road under the jurisdiction or control of any road authority other than the Promoters may be applied by the Promoters so far as may be necessary in or towards the reinstating of such road and the maintenance for six months after completion of any of the tramways within the district of such road authority of so much of the roadway on either side of such tramways as the Promoters are by this Order required to maintain and the Promoters shall if so required deliver the surplus paving metalling or material not used or required to be retained for the purposes aforesaid to the surveyor for the time being of such road authority or to such person as he may appoint to receive the same at such place as he may direct. Provided that if within seven days after the setting aside of the surplus arising from the excavation of any such paving metalling or material and notice duly given such surplus is not removed by such surveyor or by some other person named by him for that purpose such surplus paving metalling or material shall absolutely vest in and belong to the Promoters and may be dealt with removed and disposed of by them in such manner as they may think fit. Any matter in difference between the Promoters and any other person with reference to any of the matters aforesaid shall be referred to the arbitration of a person nominated by the Board of Trade.

20. The tramways shall not be opened for public traffic until the same have been inspected and certified to be fit for such traffic by the Board of Trade. Tramways not to be opened until certified by Board of Trade.

Motive Power.

21. The carriages used on the tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say):— Provisions as to motive power.

(1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade:

(2) The Board of Trade shall make regulations (in this Order referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Order of mechanical power on the tramways and for regulating the use of electrical power:

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Corporation.*

(3) The Promoters or any person using any mechanical power on the tramways contrary to the provisions of this Order or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof :

(4) The Board of Trade if they are of opinion—

(A) That the Promoters or such person have or has made default in complying with the provisions of this Order or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered ; or

(B) That the use of mechanical power as authorised under this Order is a danger to the passengers or the public ;

may by order either direct the Promoters or such person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Promoters or such person shall comply with every such order In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

*Mechanical
power works.*

22. For the purpose of working the tramways by mechanical power the Promoters and their lessees subject to the provisions of this Order (and as to the lessees subject to the terms of their lease) may—

(A) Construct provide maintain and use on any lands appropriated or acquired by them under the powers of this Order stations for generating electrical power with all necessary or proper machinery dynamos engines buildings works and conveniences :

(B) Place construct erect lay down make and maintain on above or below the surface of any street or road within the borough posts brackets electric conductors wires boxes apparatus subways tunnels cables tubes and openings :

(C) With the consent of the owners and occupiers of any houses or buildings within the borough affix to such houses or buildings or maintain brackets wires and apparatus.

*Mechanical
power works to
be subject to
Tramways Act
1870.*

23. All works to be executed by the Promoters or their lessees in any street or road for working the tramways by mechanical power in pursuance of the powers of this Order shall be deemed to be works of a tramway subject in all respects (save as by this Order otherwise expressly provided) to the provisions of the Tramways Act 1870 as in this Order incorporated as if they had been therein expressly mentioned and section 30 (except sub-sections (1) and (3) thereof) of the Tramways Act 1870 shall have effect with regard to the wires and apparatus of the National Telephone Company as if wires or apparatus laid in a road included wires or apparatus of the

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National Telephone Company erected or carried over a road or footpath
Provided always that nothing in this Order contained shall authorise the
opening or breaking up of any street or road outside the borough.

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*Luton
Corporation.*

24. Subject to the provisions of this Order the Board of Trade may make
byelaws with regard to any part of the tramways upon which mechanical
power may be used for all or any of the following purposes (that is to say):—

Byelaws.

For regulating the use of any bell whistle or other warning apparatus
fixed to the engine or carriages :

For regulating the emission of smoke or steam from engines used on the
tramways :

For providing that engines and carriages shall be brought to a stand at
the intersection of cross streets and at such places and in such cases of
horses being frightened or of impending danger as the Board of Trade
may deem proper for securing safety :

For regulating the entrance to exit from and accommodation in the
carriages used on the tramways and the protection of passengers from
the machinery of any engine used for drawing or propelling such
carriages :

For providing for the due publicity of all byelaws and Board of Trade
regulations in force for the time being in relation to the tramways by
exhibition of the same in conspicuous places on the carriages and
elsewhere.

Any person offending against or committing a breach of any of the
byelaws made by the Board of Trade under the authority of this Order shall
be liable to a penalty not exceeding forty shillings.

25. The provisions of the Tramways Act 1870 relating to the making
of byelaws by the local authority with respect to the rate of speed to be
observed in travelling on the tramways shall not authorise the local autho-
rity to make any byelaws sanctioning a higher rate of speed than that
authorised by the Board of Trade regulations at which engines are to be
driven or propelled on the tramways under the authority of this Order but
the byelaws of the local authority may restrict the rate of speed to a lower
rate than that so authorised.

Amendment
of Tramways
Act 1870 as to
byelaws by
local authority.

26. The following provisions shall apply to the use of electric power
under this Order unless such power is entirely contained in and carried
along with the carriages:—

Special pro-
visions as to
use of electric
power.

(1) The Promoters shall employ either insulated returns or uninsulated
metallic returns of low resistance :

(2) The Promoters shall take all reasonable precautions in constructing
placing and maintaining their electric lines and circuits and other
works of all descriptions and also in working their undertaking
so as not injuriously to affect by fusion or electrolytic action
any gas or water pipes or other metallic pipes structures or
substances or to interfere with the working of any wire line or

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apparatus from time to time used for the purpose of transmitting electric power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :

- (3) The electric power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :
- (4) The Promoters shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Promoters either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in proscribing such means the Board shall have regard to the expenses involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) At the expiration of two years from the passing of the Act confirming this Order the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (6) If any difference arises between the Promoters and any other party with respect to anything hereinbefore in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be :
- (7) In this section the expression "the Promoters" includes any person owning working or running carriages over the tramways.

For protection
of Postmaster-
General.

27.—(A) Notwithstanding anything in this Order contained if any of the works by this Order authorised involves or is likely to involve any alteration of any telegraphic line belonging to or used by His Majesty's Postmaster-General the provisions of section 7 of the Telegraph Act 1878

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shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration. A.D. 1905.

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(B) In the event of any of the tramways being worked by electricity the following provisions shall have effect:—

- (1) The Promoters shall construct their electric lines and other works of all descriptions and shall work the undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by the Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein. Any difference which arises between the Postmaster-General and the Promoters as to compliance with this subsection shall be referred to arbitration :
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Promoters of their electric lines and works or by the working of the undertaking the Promoters shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :
- (3) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Promoters or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Promoters and their agents shall conform with such reasonable requirements (either general or special) as may be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work. Any difference which arises between the Postmaster-General and the Promoters as to any requirements so made shall be referred to arbitration :
- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works by this Order authorised is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of any such works or to the working of the undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated for the purposes of this Order at any works of the Promoters enter thereon for the purpose of inspecting the plant and the working

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of the same and the Promoters shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Promoters pursuant to the Board of Trade regulations :

- (5) In the event of any contravention of or wilful non-compliance with this section by the Promoters or their agents the Promoters shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Promoters or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be referred to arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Promoters or their agents were a company within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Promoters by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression "the Promoters" includes any person owning working or running carriages over any of the tramways of the Promoters.

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Traffic upon Tramways.

Luton Corporation.

28. The tramways may be used for the purpose of conveying passengers animals goods minerals and parcels.

Traffic upon tramways.

29. The Promoters' lessees shall not be bound to carry unless they think fit any animals goods minerals or parcels other than passengers' luggage not exceeding twenty-eight pounds in weight.

Promoters' lessees not bound to carry animals goods &c.

30. In case the Promoters' lessees carry animals goods minerals or parcels they may and when required by the corporation shall carry the same in separate carriages or separate parts of carriages set apart for that purpose Provided that this provision shall not apply to the carriage of passengers' luggage not exceeding twenty-eight pounds in weight.

Provisions as to carriage of animals goods &c.

Rates.

31.—(1) The Promoters' lessees may demand and take for every passenger travelling upon the tramways including every expense incidental to such conveyance any rates or charges not exceeding one penny per mile and for this purpose a fraction of a mile shall be deemed a mile.

Passengers' fares.

(2) Provided that the Promoters' lessees may appoint stages upon the tramways not less than half a mile in length and may demand and take for every passenger travelling upon the tramways including every expense incidental to the conveyance of such passenger any rates or charges not exceeding one penny for each two stages (or portion of that distance) travelled and for this purpose the fraction of a stage shall be deemed a stage.

32. The Promoters' lessees shall not take or demand on Sunday or any public or local holiday any higher rates or charges than those levied by them on ordinary week days.

As to fares on Sundays and holidays.

33. Every passenger travelling upon the tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof Provided that all such personal luggage be carried by hand and at the responsibility of the passenger and do not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

Passengers' luggage.

34.—(1) The Promoters' lessees at all times after the opening of the tramways for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artisans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day Good Friday and public holidays always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance On Saturdays the Promoters' lessees in lieu of running such carriages after five o'clock in the evening shall run the same at such

Cheap fares for labouring classes.

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A.D. 1905. hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

Luton Corporation.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Promoters' lessees to provide such service as may appear to the Board to be reasonable.

(3) The Promoters' lessees shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

Rates and charges for animals goods &c.

35. The Promoters' lessees may demand and take in respect of any animals goods minerals or parcels conveyed by them on the tramways including every expense incidental to such conveyance any rates or charges not exceeding the rates and charges specified in the schedule to this Order annexed subject to the regulations in that behalf therein contained.

Payment of rates.

36. The rates and charges by this Order authorised shall be paid to such persons and at such places upon or near to the tramways and in such manner and under such regulations as the Promoters' lessees may by notice to be annexed to the list of rates and charges appoint.

Periodical revision of rates and charges.

37. If at any time after three years from the opening for public traffic of the tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Board of Trade by the Promoters or by their lessees or by twenty ratepayers of the borough that under the circumstances then existing all or any of the rates and charges demanded and taken in respect of the traffic on the tramways or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if such referee reports that it has been proved to his satisfaction that all or any of the rates or charges should be revised the said Board may make an order in writing altering modifying reducing or increasing all or any of the rates and charges to be demanded and taken in respect of the traffic on the tramways or on such portion of the tramways in such manner as they think fit and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section Provided always that the rates and charges prescribed by any such order shall not exceed in amount the rates and charges by this Order authorised Provided also that a copy of this section shall be annexed to every table or list of rates published or exhibited by the Promoters or their lessees.

Miscellaneous.

Power to corporation to work tramways.

38. Notwithstanding anything in the Tramways Act 1870 to the contrary the corporation may place and run carriages on and may work and may demand and take rates and charges in respect of the tramways and in respect of the use of such carriages and may provide such stables

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buildings carriages trucks horses harness engines machinery apparatus steam cable electrical and other plant appliances and conveniences as may be requisite or expedient for the convenient working or user of the said tramways by animal or mechanical power and in such case the several provisions in this Order contained relating to the working of the tramways and the taking of rates and charges therefor shall extend and apply mutatis mutandis to and in relation to the corporation and the corporation may work such tramways and demand and recover such rates and charges accordingly but nothing in this section shall empower the corporation to create or permit a nuisance.

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Luton Corporation.

39. The regulations authorised by the Tramways Act 1870 to be made by the Promoters of any tramway and their lessees may with respect to any tramways or portions of tramways for the time being belonging to and worked by the corporation be made by the corporation alone.

Regulations.

40.—(1) Subject to the provisions of this Order the Promoters may—

Working
agreements.

(A) Enter into and carry into effect contracts and agreements with any person authorised (whether expressly or otherwise) to enter into such contracts or agreements and owning or working any tramways connecting with any of the tramways of the Promoters with respect to—

(i) The construction of the tramways by this Order authorised ;

(ii) The formation of junctions between the tramways and the tramways belonging to such person ;

(iii) The working running over using maintaining and managing by either of the contracting parties of the tramways of the other and the fixing collecting apportionment and distribution of the rates and profits arising therefrom or of a rent for the same ;

(iv) The supply under any agreement for the tramways of either of the contracting parties being worked and used by the other of motive power or of engines carriages and plant necessary for the purposes of such agreement ;

(v) The management regulation interchange collection transmission and delivery of traffic coming from or destined for the undertakings of the contracting parties ;

(vi) The appointment of officers and servants and generally all such matters as may be deemed desirable for enabling the tramways of the contracting parties to be worked in connection ;

(B) Confirm subject to this section any such contracts and agreements entered into before the confirmation of this Order.

(2) Any contract or agreement under this section shall be submitted to and be subject to the approval of the Board of Trade.

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Mortgages to include rents and rates.

(3) In this section the word "tramways" includes light railways and parts of tramways and light railways.

41. The Promoters may include in any mortgage of the local rate made by them under section 20 of the Tramways Act 1870 the moneys coming to them out of the rents reserved under any lease made under the authority of the Tramways Act 1870 or this Order and the rates charges and sums authorised to be taken or received by them under the provisions of this Order.

Orders &c. of Board of Trade.

42. All orders regulations and byelaws made and consents and certificates given by the Board of Trade under the authority of this Order shall be signed by a secretary or an assistant secretary of the Board and when purporting to be so signed the same shall be deemed to be duly made in accordance with the provisions of this Order and to be orders and regulations within the meaning of the Documentary Evidence Acts 1868 and 1882 and may be proved accordingly.

Recovery of penalties.

43. Any penalty under this Order or under any byelaws or regulations made under this Order may be recovered in manner provided by the Summary Jurisdiction Acts.

Audit of accounts.

44. Sections 246 and 250 of the Public Health Act 1875 and section 58 (1) of the Local Government Act 1894 shall apply to the accounts of the receipts and expenditure of the Promoters and of their committees and officers with respect to the tramways and the undertaking and to the audit thereof as if such accounts related to receipts and expenditure under the Public Health Act 1875.

Protection of local authority.

45. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 is hereby incorporated with this Order and in construing that section for the purposes of this Order the expression "this Act" where used in that section shall mean this Order.

Form and delivery of notices.

46. With respect to notices and to the delivery thereof by or to the Promoters the following provisions shall have effect (that is to say) :—

- (1) Every notice consent or approval shall be in writing and if given by the Promoters or by any local or road authority or company shall be signed by their clerk or secretary :
- (2) Notices and other documents required or authorised to be served under this Order may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any authority or company any such notice or other document shall be delivered or sent by post in a prepaid letter addressed to the clerk to the authority at his office or to the secretary of the company at their registered or principal office.

Provisions as to arbitration.

47. Where under the provisions of the Tramways Act 1870 and this Order any matter in difference is referred to the arbitration of any person

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nominated by the Board of Trade the provisions of the Arbitration Act 1889 shall apply to every such arbitration as if the arbitration were pursuant to a submission.

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48. Nothing in this Order contained shall exempt the Promoters or any person using the tramways or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates or charges authorised by this Order.

Saving for
general Acts.

SCHEDULE.

MAXIMUM RATES AND CHARGES FOR ANIMALS GOODS &c.

	Per Mile.	
	s.	d.
<i>Animals.</i>		
For every horse mule or other beast of draught or burden - per head	0	4
For every ox cow bull or head of cattle - - - - - "	0	3
For every calf pig sheep or other small animal - - - - - "	0	1½

Goods and Minerals.

For all coals coke culm charcoal cannel limestone chalk lime salt sand fireclay cinders dung compost and all sorts of manure and all undressed materials for the repair of public roads or highways	per ton	0	2
For all iron iron ore pig iron bar iron rod iron sheet iron hoop iron plates of iron slabs billets and rolled iron bricks slag and stone stones for building pitching and paving tiles slates and clay (except fireclay) and for wrought iron not otherwise specifically classed herein and for heavy iron castings including railway chairs	per ton	0	2½
For all sugar grain corn flour hides dyewoods earthenware timber staves deals and metals (except iron) nails anvils vices and chains and for light iron castings - - - - -	per ton	0	3
For cotton wools drugs and manufactured goods and all other wares merchandise fish articles matters or things not otherwise specially classed herein - - - - -	per ton	0	4
For every carriage of whatever description - - - - -		1	0

Any
Distance.

Small Parcels.

	s.	d.
For any parcel not exceeding seven pounds in weight - - - - -	0	3
For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight - - - - -	0	5

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	Any Distance.
For any parcel exceeding fourteen pounds and not exceeding twenty-eight pounds in weight - - - - -	s. d. 0 7
For any parcel exceeding twenty-eight pounds and not exceeding fifty-six pounds in weight - - - - -	0 9
For any parcel exceeding fifty-six pounds in weight but not exceeding five hundred pounds in weight such sum as the person conveying the same may think fit:	

Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed small parcels but that term shall apply only to single parcels in separate packages.

For the Carriage of single Articles of great Weight.

Per Mile.
s. d.

For the carriage of any iron boiler cylinder or single piece of machinery or single piece of timber or stone or other single article the weight of which including the carriage exceeds four tons but does not exceed eight tons such sum as the person conveying the same may think fit not exceeding - - - - - per ton	2 0
For the carriage of any single piece of timber stone machinery or other single article the weight of which with the carriage exceeds eight tons such sum as the person conveying the same may think fit.	

Regulations as to Rates.

For articles or animals conveyed on the tramways for a less distance than a mile rates and charges as for one mile may be demanded.

A fraction of a mile beyond an integral number of miles shall be deemed a mile.

For a fraction of a ton rates and charges may be demanded and taken according to the number of the quarters of a ton in such fraction and if there be a fraction of a quarter of a ton such fraction shall be deemed a quarter of a ton.

With respect to all articles except stone and timber the weight shall be determined according to Imperial avoirdupois weight.

With respect to stone and timber fourteen cubic feet of stone forty cubic feet of oak mahogany teak beech or ash and fifty cubic feet of any other timber shall be deemed one ton weight and so in proportion for any smaller quantity.

PORTOBELLO AND MUSSELBURGH (AMENDMENT).

A.D. 1905.

Order granted to the National Electric Construction Company Limited amending the Portobello and Musselburgh Tramways Orders 1900 and 1903.

*Portobello and
Musselburgh
(Amendment).*

1. This Order may be cited as the Portobello and Musselburgh Tramways (Amendment) Order 1905. Short title.

2. The Portobello and Musselburgh Tramways Order 1900 (hereinafter called "the Order of 1900") as amended by the Portobello and Musselburgh Tramways Order 1903 (hereinafter called "the Order of 1903") and by this Order and the said Order of 1903 as amended by this Order and this Order shall be construed together as one Order and may be cited jointly as the Portobello and Musselburgh Tramways Orders 1900 to 1905. Orders of 1900
and 1903 and
this Order to
be construed
together.

3. The National Electric Construction Company Limited shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters." Promoters.

4. From and after the passing of the Act confirming this Order the Orders of 1900 and 1903 shall be read and construed as though in section 4 of each of those Orders the Promoters of this Order were named instead of the Promoters named in the said sections respectively and the undertakings authorised by the Orders of 1900 and 1903 and all rights powers and authorities conferred by those Orders upon the Promoters thereof shall subject to the duties obligations and liabilities of such Promoters in relation thereto vest in and be exerciseable and enjoyable by the Promoters of this Order. Promoters of
this Order to
be substituted
for Promoters
of Orders of
1900 and 1903.

Section 5 of the Order of 1903 is hereby repealed.

5. Section 46 of the Order of 1900 shall be read and construed as if the words "11th day of August 1903" were substituted throughout that section for the words "passing of the Act confirming this Order." Amendment of
section 46 of
Order of 1900.

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SOUTHAMPTON CORPORATION.

Southampton Corporation.

Order authorising the Mayor Aldermen and Burgesses of the Borough of Southampton to construct additional Tramways in the said Borough.

Short and collective titles.

1. This Order may be cited as the Southampton Corporation Tramways Order 1905 and the following Acts (namely):—

The Southampton Street Tramways Act 1877 ;

The Southampton Street Tramways (Extensions) Act 1888 ;

The Southampton Corporation Tramways Act 1897 ;

The Southampton Corporation Tramways Order 1900 (confirmed by the Tramways Orders Confirmation (No. 3) Act 1900) ;

The Southampton Corporation Tramways Order 1902 (confirmed by the Tramways Orders Confirmation (No. 2) Act 1902) ;

and this Order may be jointly cited as the Southampton Corporation Tramways Acts 1877 to 1905.

Interpretation.

2. The several words terms and expressions to which by the Southampton Corporation Tramways Order 1900 (hereinafter called "the Order of 1900") or the Acts in whole or in part incorporated therewith meanings are assigned have in this Order the same respective meanings Provided that in this Order—

The expression "the tramways" means the tramways and works by this Order authorised ;

The expression "the existing tramway undertaking" means the tramway undertaking as defined by the Order of 1900 as enlarged by that Order and by the Southampton Corporation Tramways Order 1902 (hereinafter called "the Order of 1902").

Promoters.

3. The corporation shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters."

Construction of tramways.

4. The Promoters may subject to the provisions of this Order—

(A) Construct and maintain in accordance with the plans and sections deposited at the office of the Board of Trade for the purposes of this Order (which plans and sections are in this Order referred to respectively as "the deposited plans" and "the deposited sections") the tramways hereinafter described with all proper rails plates sleepers channels (including in that expression channels passages and tubes for and cables wires and lines) junctions turntables turnouts crossings and passing places carriage-houses works mechanical appliances plant and conveniences connected therewith as may be necessary or proper therefor and for connecting and using the same with the existing or authorised tramways of the Promoters :

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(B) Erect or construct on any lands taken or appropriated under the powers of this Order any offices stables sheds workshops stores waiting-rooms or other buildings yards works and conveniences:

A.D. 1905.

Southampton Corporation.

Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the Act of 1882 apply except in accordance with and subject to the provisions of that section.

The tramways will be wholly situated within the borough and are as follows:—

Tramway No. 1 (4 furlongs 8·33 chains in length whereof 2 furlongs 8·77 chains will be single line and 1 furlong 9·56 chains will be double line) commencing in St. Mary's Road by a junction with the existing tramway at a point 0·95 chain or thereabouts measured in a northerly direction from Northam Road passing into and along Northam Road along Northam Bridge crossing over the London and South Western Railway at a point 7·47 chains or thereabouts measured in an easterly direction from Derby Road and terminating in the Northam Road at a point 0·2 chain or thereabouts measured in a westerly direction from Summers Street:

Tramway No. 1 will be laid as a double line except at the following places where it will be laid as a single line:—

In Northam Road and St. Mary's Road from the commencement of the tramway to a point 0·5 chain west of Derby Road;

In Northam Road from a point 2·5 chains east of Derby Road to a point 2·5 chains east of Belvidere Terrace;

In Northam Road from a point 0·65 chain east of Prince's Street to the termination of the tramway.

Tramway No. 3 (3 furlongs 7·90 chains in length whereof 3 furlongs 4·90 chains will be single line and 3·00 chains will be double line) commencing in Paynes Road at a point 4·95 chains or thereabouts measured in a westerly direction from Almond Road passing along Paynes Road and Waterloo Road and terminating by a junction with the existing tramway in Shirley Road:

Tramway No. 3 will be laid as a single line except at the following place where it will be laid as a double line:—

Between points 0·1 chain and 3·1 chains measured in a westerly direction from Almond Road.

Tramway No. 4 (2 furlongs 8·45 chains in length whereof 1 furlong 6·70 chains will be single line and 1 furlong 1·75 chains will be double line) commencing in Above Bar Street by a junction with the

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existing tramway at a point 1·30 chains or thereabouts measured in a northerly direction from New Road passing into and along New Road and terminating in Northam Road at a point 0·90 chain or thereabouts measured in an easterly direction from New Road :

Tramway No. 4 will be laid as a double line except at the following place where it will be laid as a single line :—

In New Road from a point 0·25 chain or thereabouts measured in an easterly direction from Palmerston Road to the termination of the tramway.

For protection
of London and
South Western
Railway Com-
pany.

5. The following provisions for the protection of the London and South Western Railway Company (in this section called "the South Western Company") shall unless otherwise agreed between the Promoters and the South Western Company in writing under their respective common seals apply and have effect :—

(1) In this section the word "apparatus" includes posts brackets electric mains wires conductors apparatus and any similar appliances to be used as or for the purposes of a motive power for the carriages running on the tramway and includes also any subways tunnels tubes boxes openings excavations channels and pipes for the purposes of such apparatus :

(2) All works by this Order authorised where the same will be made upon across or over any tunnel bridge or the approaches thereto or other work belonging to or maintainable by the South Western Company or will otherwise affect the same shall be executed so as not to interfere unnecessarily with the structure of any such tunnel bridge approaches or other work and according to plans sections and specifications to be previously submitted to and approved by the South Western Company or in case of difference between them and the Promoters by an arbitrator to be appointed as hereinafter provided All such works shall be executed and thereafter maintained according to the plans sections and specifications so approved and under the superintendence (if the same be given) and to the reasonable satisfaction of the South Western Company The Promoters shall so construct maintain and use the tramways works and apparatus as not to injuriously affect the structure of any such tunnel bridge approaches or other work and in the event of any injury being occasioned to the structure of such tunnel bridge approaches or work by the construction maintenance user or removal of the tramways works and apparatus upon across or over the same the South Western Company may make good the injury and may recover from the Promoters the reasonable expenses of so doing :

(3) If by reason of the construction or user of the tramways over any such tunnel it becomes necessary to strengthen the same the South Western Company shall give notice accompanied by

sufficient plans and specifications of the intended works to the Promoters and may after fourteen days from the date of the notice (or forthwith in case of emergency) proceed with all due despatch to execute all such works as may be reasonably necessary but in all things at the expense of the Promoters and the South Western Company may recover from the Promoters all moneys reasonably expended by them in the execution of such works as aforesaid:

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- (4) If any such tunnel bridge approaches or work as aforesaid upon which the tramway is laid be altered widened or rebuilt by the South Western Company they may require the Promoters to alter the tramway in such manner as the circumstances of the case may reasonably require and shall at the same time send sufficient plans specifications and other information to show the nature of the alteration required and the Promoters shall forthwith with all reasonable despatch carry into effect such alterations and in default thereof the South Western Company may carry out the same at the expense of the Promoters:
- (5) If the South Western Company hereafter require to widen lengthen strengthen reconstruct alter or repair any such tunnel or bridge under or upon which the tramway is laid or the approaches thereto or to widen or alter any railway thereunder or to lift or support any such tunnel or bridge the Promoters shall afford to the South Western Company all reasonable and proper facilities for the purpose and if it shall be necessary for such purpose that the working or user of any part of the tramway under or upon such tunnel bridge or approaches be wholly or in part stopped up or delayed or that such part of the tramway be wholly or in part taken up or removed and if the South Western Company accordingly give to the Promoters one month's notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up or removal then the working or user of such part of the tramway shall be stopped or delayed or such part of the tramway shall be taken up or removed as stated in such notice by the Promoters but no such working or user shall be stopped or delayed for a longer period than may be absolutely necessary for effecting such purpose as aforesaid and such part of the tramway shall be restored with all possible despatch and in such case the South Western Company shall not be liable to pay compensation in respect of such stoppage delay or taking up or removal as aforesaid Provided that during the stoppage or delay of any part of the tramways under the provisions of this subsection the South Western Company shall so far as reasonably practicable give to the Promoters all reasonable facilities for the construction and user of a temporary tramway in the place of the part of

[Ch. cxciv.] *Tramways Orders Confirmation (No. 2)* [5 Edw. 7.]
Act, 1905.

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the tramway so stopped or delayed so that the traffic on the Promoters' tramways may not be interfered with more than absolutely necessary:

- (6) The Promoters shall not in any manner in the execution maintenance user or repair of any of their works or apparatus obstruct or interfere with the free uninterrupted and safe user of any railway or other work belonging to the South Western Company or any traffic thereon:
- (7) The Promoters shall indemnify the South Western Company against all claims and compensate them for any damage or injury which may happen to the railway works or property of the South Western Company or to any persons using their railway in consequence of or during the construction and maintenance of the works or the working of the tramways by this Order authorised and the appointment by the South Western Company of any inspectors or watchmen shall not relieve the Promoters from any liability in connection therewith:
- (8) The Promoters shall on demand pay to the South Western Company the reasonable expense of the employment by the South Western Company during the execution or repair by the Promoters under this Order of any work or apparatus affecting any tunnel bridge railway or other work belonging to the South Western Company of a sufficient number of inspectors watchmen and signalmen to be appointed by the South Western Company for preventing all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Promoters or their contractors or of any person in the employ of either of them:
- (9) Any additional expense in the maintenance of any such tunnel bridge or of the approaches thereto occasioned to the South Western Company by the construction or user of the tramways shall be borne by the Promoters:
- (10) The protection afforded to the South Western Company by this section shall not extend to the case of any interference with the wires lines and apparatus of the South Western Company or the currents therein to which section 19 (Special provisions as to the use of electric power) of the Southampton Corporation Tramways Act 1897 applies but the South Western Company shall not by reason of being specially protected as regards other matters under this section lose as regards any such interference any protection to which they are otherwise entitled:
- (11) No apparatus shall except with the previous consent in writing of the South Western Company be affixed to or rest directly upon any tunnel bridge or other property of that company:
- (12) Any matter in difference between the Promoters and the South Western Company under this section shall unless otherwise agreed be referred to the arbitration of a person nominated by the Board of Trade.

[5 EDW. 7.] *Tramways Orders Confirmation (No. 2)* [Ch. cxciv.]
Act, 1905.

6. Subject to the provisions of this Order the tramways shall for all purposes form part of the existing tramway undertaking and the Promoters and their lessees and their licencees may in respect of the tramways exercise and enjoy all and the like powers rights privileges and authorities which they now may or are empowered to exercise and enjoy and shall be subject and liable to the like penalties conditions restrictions and stipulations as they are subject and liable to with respect to the existing tramway undertaking or any part thereof and may demand take and recover in respect of the tramways or any part or parts thereof the like tolls rates and charges for the use thereof and for the conveyance thereon of traffic of all kinds and for the use of carriages placed and run thereon by them as they are authorised to demand and take in respect of the tramways authorised by the Southampton Street Tramways Act 1877.

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Tramways to form part of existing tramway undertaking for all purposes.

7.—(1) This section shall come into operation on the first day of April one thousand nine hundred and six.

Application of tramway revenue and audit of accounts.

(2) Section 38 (Application of revenue) of the Southampton Corporation Tramways Act 1897 section 10 (Application of tramway revenue) of the Order of 1900 and section 9 (Application of tramway revenue) of the Order of 1902 are hereby repealed.

(3) The corporation shall keep the accounts in respect of their tramway undertaking (including the existing tramway undertaking the undertaking authorised by this Order and the undertakings authorised by all subsequent Acts of Parliament or Orders confirmed by Parliament) separate from all their other accounts distinguishing therein capital from revenue and shall apply all money received by them on account of revenue in respect of the undertaking in the manner and in the order following (that is to say):—

First In payment of the working and establishment expenses and cost of maintenance of the undertaking (including the maintenance and repair of so much of the roads in which the tramways of the corporation are laid as is required to be maintained and kept in good condition and repair by the promoters of tramways by section 28 of the Tramways Act 1870 and including all costs expenses penalties and damages incurred or payable by the corporation consequent upon any proceedings by or against the corporation their officers or servants in relation to the undertaking):

Secondly In payment of the interest or dividends on money borrowed by the corporation for the purposes of the undertaking:

Thirdly In providing the requisite appropriations instalments or sinking fund payments in respect of money borrowed by the corporation for the purposes of the undertaking:

Fourthly In effecting (if the corporation think fit) any authorised extensions and improvements of the existing tramway undertaking:

Fifthly In providing a reserve fund (if the corporation think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in or upon any securities in or upon which the corporation are or may be authorised to invest

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their sinking fund and accumulating the same together with the fund formed by the corporation under the said section 38 of the Southampton Corporation Tramways Act 1897 at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the corporation not exceeding a sum equal to one fifth of the aggregate capital expenditure for the time being by the corporation upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the corporation in respect of the undertaking or for payment of the cost of renewing improving or extending any part of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

And the corporation shall carry to the borough fund so much of any balance remaining in any year of the income of the undertaking (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the corporation not be required for carrying on the undertaking and paying the current expenses connected therewith.

(4) The accounts of the corporation kept in accordance with the provisions of this section shall be audited with the same incidents and consequences as the accounts of the corporation are audited under the provisions of the Municipal Corporations Act 1882.

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